INITIATIVE MEASURE TO BE SUBMITTED DIRECTLY TO THE VOTERS
CITY OF LONG BEACH
BLOCK THE CUTS AND BUILD LONG BEACH INITIATIVE ORDINANCE

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The people of the City of Long Beach do ordain as follows:

Block the Cuts and Build Long Beach Initiative Ordinance ("Build Long Beach")

SECTION 1. The People of the City of Long Beach do hereby find:

A. Long Beach is experiencing growing demands on essential municipal services and infrastructure that are critical to protecting public health and safety, maintaining community stability, and ensuring a functional and resilient city. Rising housing costs, homelessness, aging infrastructure, and increasing demands on emergency response systems are interrelated challenges that directly affect the City's ability to provide governmental services. Long Beach faces fiscal pressure due to reductions in federal support and structural limitations on traditional revenue sources. The People of the City of Long Beach also anticipate future reductions in federal funding, which would impact additional services and initiatives that are already benefiting residents and businesses. Stable funding is necessary to maintain and expand the City's capacity to prevent and respond to emergencies, preserve and improve public infrastructure, and address housing instability that threatens public health, safety, and welfare.

B. Enacted cuts and ongoing uncertainty around federal funding for Long Beach housing, homelessness prevention, emergency response, infrastructure, and health services has underscored and increased the need for reliable local funding for municipal services and infrastructure necessary to protect public health, safety, stability, and quality of life.

C. Absent additional local revenue, the People anticipate severe strain on the City's budget, creating ongoing financial shortfalls that increase the risk of reductions to emergency response, infrastructure maintenance, housing investments, and other municipal services necessary to protect community stability. The purposes funded by this initiative ordinance have the common objective of strengthening the City's governmental functions and infrastructure for the benefit of current and future residents.

D. New revenue can be generated without adding to the tax burden on renters or the vast majority of Long Beach homeowners by exempting home and condominium owners making less than $250,000 per year.

E. With nearly 60% of residents renting their home, the Long Beach community is especially vulnerable to rising rents and the housing instability that comes with unpredictable cost increases. More than half of Long Beach renters are cost-burdened, and one in four pays over half their income toward rent.

F. The City of Long Beach has produced only 25% of state-mandated housing targets for the period beginning in 2021 and ending in 2029, and just 13% of the affordable units required under this state-mandated housing obligation. Only 3% of the homes needed for very low-income families have been delivered: 228 of 7,141.

G. 2,089 units across 22 assisted multifamily projects in Long Beach are set to lose their affordability contracts by 2031.

H. Home prices in Long Beach have risen nearly 387% since 2000, while incomes have grown only 125%, leaving the median home price ($852,354) affordable to fewer than 20% of households.

I. Shared-equity homeownership provides a critical opportunity for lower- and moderate-income Long Beach residents to participate in homeownership models but requires capital investment for the projects and capacity building to prepare residents for ownership and governance responsibilities.

J. The City of Long Beach's existing funding and programs for affordable housing and homelessness prevention are falling far short of meeting the needs of Long Beach residents.

K. Funds from a Special Parcel Tax will establish an ongoing revenue source for an Affordable Housing Production, Preservation, Ownership and Stabilization Program which will allow the City of Long Beach to permanently preserve at-risk affordable housing and produce new affordable housing as well as create shared-equity or other homeownership opportunities for people who currently cannot afford to buy homes, and create a funding source for ongoing outreach and education to inform tenants of services and their rights.

L. In addition, current Long Beach revenue dedicated to emergency services has failed to keep pace with decades of increased service demand.

M. The Long Beach Fire Department (LBFD) system is currently strained to its operational limit, experiencing frequent shortages of available emergency units necessary for time-sensitive, life-saving care due to continuously rising Emergency Medical Services (EMS) demand. This systemic stress undermines response reliability even on ordinary days and makes the system fragile when confronting major incidents or large-scale events.

N. The nature of emergency response has evolved, with the LBFD now serving as the primary access point to the healthcare system for a growing portion of residents. By expanding mobile integrated health, community paramedicine, advanced provider response units, and telemedicine capabilities, LBFD can actively guide individuals to the appropriate level of care, preserving emergency room and ambulance capacity for the most serious emergencies.

O. Most of Long Beach's fire stations have exceeded their intended service life, creating escalating maintenance costs, risks associated with mold and environmental hazards, and severe vulnerability during regional disasters due to a lack of seismic integrity and resilient power systems.

P. Additional Paramedic Rescues, Paramedic Assessment Units, fast-response paramedic vehicles, and advanced provider response units are fundamental to implementing new deployment models tailored to manage diverse call volumes.

Q. Long Beach's unmet infrastructure needs—such as improving streets, sidewalks, alleys, coastal infrastructure, public facilities, parks, and systems supporting clean water and flood protection—continues to exceed available funding, with a deferred maintenance backlog estimated to exceed $3.5 billion dollars, reflecting decades of underinvestment.

R. The current average street condition remains below the threshold considered "good" in the City's Pavement Condition Index and streets require sustained annual investment well above current funding levels to prevent further deterioration and to improve roadway conditions, particularly in older neighborhoods and areas heavily trafficked due to industrial activity and activity related to the Port of Long Beach.

S. Streets and related public infrastructure are foundational to emergency response, transit reliability, neighborhood safety, and economic activity, and continued degradation undermines the City's ability to deliver essential services and attract private and public investment.

T. A locally approved revenue source would ensure that funds raised in Long Beach remain in Long Beach and are dedicated to fund needed City services, facilities, and infrastructure that support public health, safety, and community stability, including but not limited to interrelated governmental purposes, including fire protection and emergency response, housing stability and affordability, street repair and maintenance, public works infrastructure, and essential City services, thereby providing direct and ongoing benefits to Long Beach residents and neighborhoods.

U. Revenues generated from a Special Parcel Tax on the square footage of properties within the City of Long Beach will maintain and improve existing programs but will include exemptions for low- and middle-income homeowners, mobile home parks, agricultural land, cemeteries, and recreational spaces.

V. The programs funded through this initiative will be deployed in such a way as to promote equitable access to housing, services, job creation and other economic opportunities regardless of race, sexuality, gender, disabilities, ethnicity, immigration status, or other protected status, to the fullest extent provided by law.

W. It is the intention of the voters in adopting this initiative to ensure that tax proceeds from the Block the Cuts and Build Long Beach Ordinance be used to fund the purposes set forth in the Block the Cuts and Build Long Beach Programs ("LB Programs") set forth in the text of the initiative ordinance.

Now THEREFORE, based on these findings, the People declare that the City of Long Beach adopt the legislation contained herein to increase, maintain and strengthen the City's municipal services and infrastructure necessary to protect public health, safety, and community stability of the City of Long Beach's communities. This initiative ordinance, if adopted, shall amend Title 3 of the Long Beach Municipal Code, to add Chapter 3.100 — Block The Cuts and Build Long Beach Ordinance—to impose a special tax to enable the City to fund fire protection and emergency medical services; improve, repave and repair streets, parks, clean water infrastructure and other public infrastructure; address rising housing costs by creating affordable alternatives including innovative pathways for residents to own their own homes; and maintain essential City services necessary to support the implementation of the foregoing programs. Revenues generated by the special tax shall not be used for any purposes not referenced in this initiative ordinance.

Because the proceeds of the parcel tax will be deposited in a special fund or funds restricted for the services and programs specified in the initiative ordinance, the tax is a special tax.

SECTION 2. A new Chapter 3.100 is added to the Long Beach Municipal Code to read as follows:

Chapter 3.100
Block the Cuts and Build Long Beach Ordinance

Sections:

3.100.010 Title.
3.100.015 Definitions.
3.100.020 Adoption and Rates of Tax.
3.100.025 Block the Cuts and Build Long Beach Fund
3.100.030 Annual Expenditure Plan.
3.100.035 Administration and Rulemaking
3.100.040 Community Oversight and Accountability.
3.100.045 Effective Date.
3.100.050 Labor Provisions.
3.100.055 Conflicting Measures.
3.100.060 Severability.

3.100.010 TITLE.

This Chapter shall be known as the "Block the Cuts and Build Long Beach Ordinance".

3.100.015 DEFINITIONS.

For purposes of this Ordinance, the following definitions shall apply:

A. "Area Median Income" or "AMI" means the median household income for Los Angeles County, adjusted for household size, as published annually by the California Department of Housing and Community Development (HCD) or the U.S. Department of Housing and Urban Development (HUD).

B. "Acutely Low Income Household" or "ALI" shall have the meaning as in California Health and Safety Code Section 50063.5.

C. "Assessor" means the Los Angeles County Assessor.

D. "Assessment Roll" means the latest equalized secured assessment roll of the Assessor.

E. "Assessor's Data" means the property characteristic data compiled and maintained by the Assessor for each Assessor's Parcel, including, but not limited to, Assessor's Parcel Number, Lot Square Footage, Owner, and Parcel Tax Classification.

F. "Assessor's Parcel Number" or "APN" means, with respect to a Parcel, that number assigned to such Parcel by the County for purposes of identification.

G. "Cemeteries" Parcel Tax Classification means Parcels used for the interment of the human dead. It is anticipated that these Parcels may have Assessor use codes beginning with 770 (corresponding to "Cemetery, Mausoleum" on the Assessor Property Use Classification Chart).

H. "Change in Consumer Price Index" means the change in the most recent 12 months as of June 30th of each year in the Consumer Price Index for All Urban Consumers for the Los Angeles – Long Beach

– Anaheim metropolitan area published by the U.S. Bureau of Labor Statistics or any successor to that index.

I. "City" means the City of Long Beach.

J. "Community Land Trust" or "CLT" means a non-profit corporation within Section 501(c)(3) of the Internal Revenue Code that satisfies all of the following:
   1. Has as its primary purposes the creation and maintenance of perpetually affordable single-family or multifamily residences;
   2. All dwellings and units located on the land owned by the non-profit corporation are sold to a qualified owner to be occupied as the qualified owner's primary residence or rented to Lower Income Households or Moderate Income Households, or held by the non-profit corporation or transferred to another entity for the same purpose;
   3. When a dwelling or unit that is situated on land owned by the non-profit corporation is sold to a qualified owner, the land is leased by the non-profit corporation to the qualified owner for the convenient occupation and use of that dwelling or unit for a renewable term of 99 years;
   4. Is organized as a membership organization under section 5310 of the California Corporations Code, provides for the election of its Board of Directors by its members, and reserves seats on the Board of Directors for residents of dwellings situated on land owned by the non-profit corporation; and
   5. Operates in a manner that ensures retention of public subsidy for future households, permanent affordability, and protection of land from real estate speculation.

K. "Condominium" means a Parcel that was created as a result of the recordation of a condominium plan pursuant to California Civil Code 4285, that creates individual units.

L. "Extremely Low Income Household" or "ELI" shall have the meaning as in California Health and Safety Code Section 50106.

M. "Industrial" Parcel Tax Classification means Parcels used for industrial purposes including light and heavy manufacturing; warehousing, distribution and storage; food processing plants; motion picture, radio and television industry studio, transmission facility, or microwave relay tower; lumber yard; mineral processing, open storage; or similar use. It is anticipated that the Industrial tax rate will be levied on the Parcels with an Assessor use code beginning with 3 (corresponding to "Industrial" on the Assessor Property Use Classification Chart).

N. "Irrigated and Dry Farms" Parcel Tax Classification means Parcels used primarily as farms including fruits and nuts, vineyards, vine and bush fruits, truck crops, field crops, pasture, dairy, poultry, feed lots, timber, or similar uses. It is anticipated that the tax exemption for Irrigated and Dry Farms will apply to the Parcels with an Assessor use code beginning with 4 or 5 (corresponding to "Irrigated Farm" and "Dry Farm" on the Assessor Property Use Classification Chart).

O. "Limited-Equity Housing Cooperative" or "LEHC" shall have the same meaning as in Section 817 of the California Civil Code.

P. "Local Small Business" means a business entity organized for profit, which may be a sole proprietorship, partnership, corporation, cooperative, or any other legal form, meeting all of the following criteria:

1. Has a current, valid business license from the City showing a place of business within the City limits;
2. Is a "Microbusiness" pursuant to paragraph (2) of subdivision (d) of California Government Code Section 14837;
3. Has annual gross receipts of less than or equal to $500,000, which shall be increased annually by the Change in Consumer Price Index, not to exceed 3% per year; and
4. Any other eligibility requirements adopted by the City Council as necessary to address cases of financial hardship.

Q. "Lot Square Footage" means the land area in square feet of a Parcel as shown in the Assessor's Data. If the Assessor's Data shows no area, or where the area is inaccurate, the area for any Parcel may be determined by the City based upon, in the City's discretion, the applicable Assessor's Map, condominium plan, final map, parcel map, or by using available spatial data, GIS, or other methods. Lot Square Footage for Condominiums shall be determined by using the Lot Square Footage of the common interest land divided by the total number of Condominium units on such common interest land. Lot Square Footage for a Possessory Interest means the area of the Parcel that the Owner has an exclusive right to the use of.

R. "Lower Income Household" shall have the meaning as in California Health and Safety Code 50079.5.

S. "Low Income Households" or "LI" shall mean Lower Income Households whose gross incomes exceed the maximum for Very Low Income Households.

T. "Mobile Homes" mean Parcels whose principal improvement and use is Manufactured Housing as defined by Section 21.15.1720 of this Code. It is anticipated that the tax exemption for Mobile Homes will apply to the Parcels with an Assessor use code beginning with 07 (corresponding to "Manufactured Homes" on the Assessor Property Use Classification Chart).

U. "Mobile Home Parks" means Parcels whose principal use is for occupancy by one or more Mobile Homes. It is anticipated that the tax exemption for Mobile Home Parks will apply to the Parcels with an Assessor use code beginning with 09 (corresponding to "Manufactured Home Park" on the Assessor Property Use Classification Chart).

V. "Moderate Income Household" or "MI" shall have the same meaning as "Persons and families of low or moderate income" in California Health and Safety Code 50093.

W. "Owner" means the person shown on the Assessment Roll as the owner of a Parcel.

X. "Parcel" means the smallest, separately segregated lot, unit or plot of land having an identified property owner, boundaries and surface area which is documented for property tax purposes and given an Assessor's Parcel Number by the Assessor.

Y. "Parcel Tax Classification" means the Parcel's use based on the use code from the Assessor's most recent secured property tax roll, or based on data otherwise known to the City.

Z. "Person" means an individual, firm, partnership, joint venture, association, social club, fraternal organization, joint stock company, corporation, estate, trust, business trust, receiver, trustee, syndicate, or any other group or combination acting in concert.

AA. "Possessory Interest" means possession of, claim to, or right to the possession of, land or improvements, including any exclusive right to the use of such land or improvements.

BB. "Qualifying Low- or Middle-Income Resident" means a person whose household income does not exceed $250,000 per year.

CC. "Recreational" Parcel Tax Classification means Parcels used primarily for recreational uses such as movie and stage theaters, water recreation, bowling alleys, clubs, lodge hall, fraternal organization, athletic and amusement facility, golf course, racetrack, camp, skating rink, or similar use. It is anticipated that the tax exemption for Recreational uses will apply to the Parcels with an Assessor use code starting with a 6 (corresponding to "Recreational" on the Assessor Property Use Classification Chart).

DD. "Single-Family Home or Condominium" means a residential Parcel improved with a single dwelling unit, including a residential condominium, a single residential dwelling unit and an accessory dwelling unit as that term is defined by Government Code Section 66313, or other residential Parcel under fractional ownership where owners have the exclusive right of use and possession to individual dwelling units.

EE. "Special Parcel Tax" means the tax imposed pursuant to Section 3.100.020.

FF. "Very Low Income Household" or "VLI" shall have the meaning as in California Health and Safety Code Section 50105.

3.100.020 ADOPTION AND RATES OF TAX.

A. Imposition of Tax. There is hereby imposed a special tax on all Owners of Parcels in the City for the privilege of using, and/or the availability of, City services. Except when this Ordinance expressly provides to the contrary, whenever possible the tax shall be collected at the same time, by the same officials, and pursuant to the same procedures, including penalties and interest for late or non-payment, as the ad valorem property tax imposed pursuant to Article XIII A of the California Constitution. All revenues from this special tax shall be used consistent with the expenditure plan set forth in Section 3.100.030 and to fund the costs incurred in connection with the levy and collection of the tax.

B. Tax Rate.

1. Beginning January 1, 2027, the tax shall be imposed at a rate of fifteen cents per square foot of Lot Square Footage, unless otherwise specified in the following table showing the rate by Parcel Tax Classification:

Parcel Tax Classification	Typical County Land Use Codes	Tax Rate
Industrial	Use codes beginning with 3.	45 cents per square foot of Lot Square Footage.

Mobile Home and Mobile Home Parks	Use codes beginning with 07 and 09	Exempt.[1]
Cemeteries	Use codes beginning with 770.	Exempt.
Irrigated and Dry Farms	Use codes beginning with 4 or 5.	Exempt.
Recreational	Use codes beginning with 6.	Exempt.

2. Notwithstanding section 3.100.020.B.1 of this Ordinance, no tax shall be due from:
   (a) A Single-Family Home or Condominium where the Owner demonstrates to the satisfaction of the City that they are a Qualifying Low- or Middle-Income Resident and use the Parcel as their primary residence.
   (b) Parcels where the Owner can demonstrate to the satisfaction of the City that, due to deed restrictions or other characteristics of the property, the Parcel cannot be put to a use that generates demand for City services. Vacancy or a lack of structures or infrastructure are alone insufficient for such a showing.
   (c) Parcels exempt from ad valorem property taxes to the same extent partially or fully exempt as determined by the Assessor, including, but not limited to, government Parcels and Parcels owned by non-profit organizations satisfying the requirements of Revenue and Taxation Code Section 214. However, a Possessory Interest in a publicly owned Parcel may be taxed pursuant to the rates above based on the actual use of such Parcel, as long as the Possessory Interest holder is not otherwise exempt pursuant to this section.

3. The City Council is authorized to enact ordinances, without further voter approval, to fully or partially exempt from this tax certain Possessory Interests subject to the tax under section 3.100.020.B.2(c) of this Ordinance if it finds that the tax amount would be grossly disproportionate to the demand for City services generated by the Possessory Interest or that the tax amount would create an undue financial hardship on a Qualifying Low- or Middle-Income Resident.

4. The City may provide a refundable credit to a Qualifying Low- or Middle-Income Resident that is a tenant of a residential dwelling unit on a Parcel subject to this tax. The credit may be equal to all or part of the tax imposed on the Parcel, divided by the number of rental dwelling units on the Parcel.

5. The City may fully or partially exempt, or provide a refundable credit to, a Local Small Business that is the Owner of, or occupies as a tenant, a Parcel subject to this tax.

[1] Both the mobile home itself and the land underlying the mobile home shall be exempt from this tax.

6. The tax on a Parcel shall be imposed only on the first 75 acres of Lot Square Footage, except for Parcels with an "Industrial" Parcel Tax Classification, in which case the tax shall be imposed only on the first 25 acres of Lot Square Footage.

7. In each year after 2027, the tax rates in section 3.100.020.B.1 of this Ordinance, the maximum area subject to the tax in section 3.100.020.B.6 of this Ordinance, and the income threshold for a Qualifying Low- or Middle-Income Resident shall be increased by the Change in Consumer Price Index, but not to exceed an increase of 3%. The City shall establish and publish the calculation annually before the tax roll is prepared.

8. The City shall establish and administer an appeals process to address and correct errors in the levy of the Special Parcel Tax. Parcel owners or any other person or entity subject to the Special Parcel Tax may seek review of the amount of their tax on the following grounds:
   (a) Mathematical error in the calculation of the tax;
   (b) Significant discrepancy between the Lot Square Footage used to calculate the tax amount and the actual Lot Square Footage;
   (c) A discrepancy between the Parcel Tax Classification and the true use of the Parcel.
   (d) An error in determining whether an Owner or Parcel is eligible for a credit or exemption from the tax imposed by Section 3.100.020.

9. Pursuant to California Constitution Article XIIIB, the appropriations limit for the City is hereby increased by the aggregate sum authorized to be levied by this Special Parcel Tax for the fiscal year 2027 and each year thereafter.

10. The provisions of Section 3.100.020 shall not apply to any person, or to any property as to whom or which it is beyond the power of the City to impose the tax herein provided. If any provision, sentence, clause, section or part of this ordinance is found to be unconstitutional, illegal or invalid, such unconstitutionality, illegality or invalidity shall affect only such provision, sentence, clause, section or part of this ordinance and shall not affect or impair any remaining provisions, sentences, clauses, sections or parts of this ordinance. It is hereby declared to be the intention of the voters that the ordinance would have been adopted had such unconstitutional, illegal or invalid provision, sentence, clause, section or part thereof not been included herein.

3.100.025 BLOCK THE CUTS AND BUILD LONG BEACH FUND.

A. There is hereby created and established within the Treasury of the City of Long Beach a special trust fund to be known as the Block the Cuts and Build Long Beach Fund ("Build LB Fund") for the deposit and use of all taxes collected pursuant to Section 3.100.020 of the Long Beach Municipal Code. Money in the Build LB Fund shall be used exclusively according to the Build LB Programs set forth in Section 3.100.030 of the Ordinance.

B. All interest earnings accruing on money in the Build LB Fund shall be credited to, and used for, the purposes of the Build LB Fund. Money not expended from the Build LB Fund in any fiscal year shall not revert to the City's General Fund but shall remain in the Build LB Fund.

C. Any program income generated through the Build LB Program, including but not limited to any loan repayments, value recapture, or return of assets generated by the Build LB Fund must be

redeposited into the Build LB Fund, and shall not be commingled in any other City fund or used for any purposes other than those described in the Build LB Program.

D. The Build LB Fund shall be administered by the City Manager, or any designee of the City Manager, in strict accordance with the provisions of this Ordinance.

E. The City Council may establish any additional funds, or accounts within this fund, necessary to implement this initiative and the expenditures described in Section 3.100.030 of this Ordinance.

3.100.030 ANNUAL EXPENDITURE PLAN.

Each year, the City shall adopt an Annual Expenditure Plan to spend the Build LB Fund. Allocations from the Build LB Fund will be in accordance with the following Block the Cuts and Build Long Beach Programs ("Build LB Programs"). If the revenue available after administrative expenses allowed under sections 3.100.035.A.4. and 5. is less than $27 million dollars, adjusted for the Change in Consumer Price Index, then the minimum dollar amounts in sections 3.100.030.A and 3.100.030.C may be disregarded and the allocation percentage indicated in the respective sections shall be operative and utilized.

A. Fire and Emergency Medical Services Program.

A minimum of 10% of all revenue generated annually by this Ordinance shall be dedicated to the Fire and Emergency Medical Services Program, or, for all years after the first fiscal year, a minimum of $7 million dollars annually, whichever is more. The minimum dollar amount shall be increased annually by the Change in Consumer Price Index, not to exceed 3% per year.

1. Program Goals: The goals of the Fire and Emergency Medical Services Program ("Fire & EMS Program") of the Build LB Fund shall include:
   (a) Strengthening Long Beach's emergency response system to ensure timely, reliable, and life-saving fire suppression and emergency medical services, including improved response times and advanced life support coverage citywide;
   (b) Expanding emergency medical response capacity to meet rising 911 call volume and evolving healthcare needs, while reducing repeat and preventable emergency calls through mobile integrated health, community paramedicine, and community-based care strategies;
   (c) Modernizing and rebuilding fire stations, EMS facilities, and emergency response infrastructure to improve operational resilience, seismic safety, and the ability to operate during disasters and large-scale emergencies;
   (d) Supporting workforce safety, training, recruitment, retention, and wellness, ensuring a skilled, healthy, and prepared Fire & EMS workforce capable of meeting current and future service demands;
   (e) Advancing equitable emergency medical access and outcomes, particularly in communities with historically higher emergency call volumes, health disparities, and service gaps; and
   (f) Ensuring that voter-approved Fire & EMS funds are used transparently, accountably, and exclusively for Fire & EMS purposes, consistent with voter intent to build lasting emergency response capacity, protect frontline responders, and ensure Long Beach is prepared to respond effectively today and in the decades ahead.

2. Program Overview: The Fire & EMS Program, which is hereby established by this section 3.100.030.A, shall expand, modernize, and sustain Long Beach's fire and emergency medical

response system. This Fire & EMS Program shall address documented gaps in emergency response capacity, aging facilities, workforce safety, and emergency medical system modernization. The Fire & EMS Program authorizes capital investments, payment of the principal and interest on debt incurred for capital investments, and ongoing operational and maintenance costs necessary to place new resources into service and keep them functional over time.

3. Allocation of Funds: Fire & EMS Program funding shall be allocated among the following subprograms, with approximate target allocations to guide annual expenditure planning:
   (a) Emergency response capacity and 911/EMS systems modernization: approximately 40% of Fire & EMS Program funds;
   (b) Fire stations and public safety facilities: approximately 30% of Fire & EMS Program funds;
   (c) Workforce safety, training, and wellness infrastructure: approximately 20% of Fire & EMS Program funds; and
   (d) Community risk reduction and equity-focused programs: approximately 10% of Fire & EMS Program funds.

   The above-stated subprogram allocations may be adjusted in a given fiscal year under the following circumstances: (a) Subject to approval by City Council, exact allocations may be adjusted through the Annual Expenditure Plan pursuant to Section 3.100.030 of this Ordinance in response to operational needs, emerging risks, and capital timing; and (b) all expenditures remain consistent with the Program Goals and Eligible Uses set forth in section 3.100.030.A.

4. Program Categories and Eligible Uses: Funding allocated to the Fire & EMS Program shall only be used for the following Eligible Uses as described in this section 3.100.030.A.4, and may not be diverted, reprogrammed, or reassigned to unrelated City departments, projects, or expenses. Any funds that are required to be transferred to the General Fund pursuant to this section shall be placed in a restricted subaccount and shall be tracked separately and auditable as Fire & EMS Program expenditures, and shall not be used for any non-Fire & EMS Program purpose.
   (a) Emergency Response Capacity and 911/EMS Systems Modernization: Funds allocated to the Emergency Response Capacity and 911/EMS Systems Modernization subprogram, that is hereby established, shall be used to expand, staff, equip, operate, and maintain modern emergency response resources. Allowable expenditures include capital acquisition, technology, staffing, training, deployment costs, fuel, maintenance, and lifecycle replacement. Eligible Uses shall include:
      (i) Paramedic Rescue Units: New and expanded ALS paramedic ambulances to complement the current system of operations, including vehicles, medical equipment, communications, and ongoing staffing;
      (ii) Paramedic Assessment Units and Fast-Response Vehicles: Rapid-deployment units designed to improve response times and right-size medical response;
      (iii) Advanced Provider Response Units: Clinically advanced EMS resources supporting complex medical, behavioral health, and high-acuity calls;
      (iv) Engines or trucks where required to maintain balanced deployment and ensure citywide coverage; and
      (v) 911 and EMS Systems Modernization: Computer-aided dispatch upgrades; Integrated data and analytics platforms; Telehealth, nurse navigation, and

medical triage pathways; and Communications and interoperability improvements. Funding for this purpose shall be only for modernization or upgrades, not for existing baseline 911 operations.

(b) Fire Stations and Public Safety Facilities: Funds allocated to the Fire Stations and Public Safety Facilities sub-program, that is hereby established, shall be used to replace, modernize, and maintain Fire Department facilities to current safety, seismic, and operational standards. Funds may be used for planning, design, land acquisition, construction, renovation, major maintenance, and facility lifecycle costs directly related to Fire & EMS operations, including:
   (i) Replacement of fire stations that have exceeded their useful service life;
   (ii) Seismic retrofits and disaster-resilient construction;
   (iii) Modern apparatus bays compatible with current and future equipment;
   (iv) On-site resilient power systems and backup generation;
   (v) Contamination-control layouts and cancer-prevention design standards; and
   (vi) Climate-resilient infrastructure addressing extreme heat and environmental risk.

(c) Workforce Safety, Training and Wellness Infrastructure: Funds allocated to the Workforce Safety, Training and Wellness Infrastructure sub-program, that is hereby established, shall be used to support a healthy, prepared, and sustainable Fire and EMS workforce, and are intended to reduce preventable injuries, burnout, and early retirements while maintaining consistent service delivery. Eligible Uses include:
   (i) Development or modernization of a fire training center including improvements such as simulation labs and modern training facilities, gender-accommodating and inclusive facilities, and safety-focused training infrastructure;
   (ii) Behavioral health, peer-support, and resilience spaces;
   (iii) Cancer, cardiac, and injury-prevention infrastructure; and
   (iv) Equipment and facilities that reduce occupational risk and long-term health impacts

(d) Community Risk Reduction and Equity-Focused Programs: Funds allocated to the Community Risk Reduction and Equity-Focused Programs subprogram, that is hereby established, shall be used to strengthen prevention, community health, and equity-driven initiatives, including:
   (i) Mobile Integrated Health and community paramedicine programs;
   (ii) High-utilizer intervention and care-coordination programs;
   (iii) Behavioral health crisis response and diversion models;
   (iv) Fire prevention, injury reduction, and hazard mitigation in high-risk neighborhoods; and
   (v) Culturally competent outreach, language accessibility, and neighborhood-based services.

5. Program Implementation: The City shall develop rules, regulations, requests for proposals, and funding criteria necessary to implement the requirements of section 3.100.030.A in accordance with Program Guidelines developed pursuant to Section 3.100.035.A. Such Program Guidelines shall ensure:
   (a) Coordination with other City departments where shared infrastructure or systems are involved, provided Fire & EMS funds are used only for Fire & EMS-related costs.

(b) Initial prioritization of investment with the highest demonstrated need, including: High 911 call-volume zones; Neighborhoods with limited access to primary or behavioral healthcare; and Areas with a higher concentration of seniors, medically fragile residents, and high-density housing.

(c) Ordinance revenues may be used not only for capital investment but may also be used for ongoing operational sustainability and maintenance costs directly tied to the authorized programs, including: Staffing required to place new units and facilities into service; Preventive maintenance and lifecycle replacement of vehicles, equipment, and facilities; and Technology upkeep and system support.

6. Prohibition on Supplanting: Funds allocated under this section 3.100.030.A shall supplement, and not supplant, existing City expenditures for fire and emergency medical services programs. The City may deviate from this requirement only upon a finding, supported by written documentation and adopted at a public hearing, that a reduction in baseline funding is necessary due to an extraordinary fiscal condition materially impacting the City's General Fund revenues, and the deviation is narrowly tailored and limited in duration. Any such deviation shall require review by the Community Oversight Committee, which may issue an advisory opinion, and approval of the deviation by City Council. All deviations shall be disclosed in the Build LB Annual Report.

B. Streets and Public Infrastructure Program.

A minimum of 35% of all revenue generated annually by this Ordinance shall be dedicated to the Streets and Public Infrastructure Program. However, in all years after the first fiscal year, if the total revenue after administrative expenses allowed under sections 3.100.035.A.4. and 5. is insufficient to meet the minimum dollar amounts in sections 3.100.030.A. and 3.100.030.C. and the minimum percent allocation in this section 3.100.030.B., the minimum percent allocation in this section 3.100.030.B. may be disregarded.

1. Program Goals: The goals of the Streets and Public Infrastructure Program ("Infrastructure Program") of the Build LB Fund shall include:
   (a) Improving the condition, safety, and reliability of City streets and roads, including halting further pavement degradation and increasing the City's overall Pavement Condition Index (PCI) toward a standard of good repair;
   (b) Addressing the City's infrastructure backlog by accelerating investment in streets and other critical public assets that currently lack sufficient or stable funding sources;
   (c) Delivering visible, tangible infrastructure improvements that residents can see and experience in their neighborhoods, including repaired streets, accessible sidewalks, upgraded public facilities, and resilient public spaces;
   (d) Advancing equity in infrastructure investment, prioritizing neighborhoods with historic underinvestment, older infrastructure, higher safety risks, and greater unmet needs, including the core areas of the City with the greatest infrastructure deficits;
   (e) Improving the safety and functionality of the City's streets, roads, and sidewalks for bus riders and pedestrians;
   (f) Strengthening the City's economic vitality and community well-being by investing in infrastructure that supports mobility, safety, sustainability, public services, cultural assets, and long-term economic development, particularly in underserved communities; and

(g) Ensuring that voter-approved Infrastructure Program funds are used transparently, accountably, and exclusively for infrastructure purposes, consistent with voter intent to rebuild, modernize, and sustain the physical foundation of the City for current and future generations.

2. Program Overview: The Streets and Public Infrastructure Program that is hereby established by this Section shall expand, modernize, and sustain the City's core public infrastructure. The Infrastructure Program is structured to address documented deficiencies in street conditions, sidewalks, public facilities, coastal and storm protection infrastructure, and other public assets that have resulted from decades of underinvestment.

   The Infrastructure Program authorizes direct capital investment, planning, design, permitting, and project delivery, payment of the principal and interest on debt incurred for capital investments, and ongoing operational and maintenance costs necessary to place new infrastructure into service and preserve its useful life over time. Ordinance revenues may be used to maximize infrastructure investment by leveraging City-issued debt, as well as state and federal grant funding that requires local matching funds or shovel-ready project design.

3. Allocation of Funds: Infrastructure Program funding shall be allocated among the following subprograms, with approximate target allocations to guide annual expenditure planning:
   (a) Street and Roadway Infrastructure: approximately 60% of Infrastructure Program funds;
   (b) Sidewalks, Alleys, and Active Transportation Infrastructure: approximately 15% of Infrastructure Program funds;
   (c) Public Facilities, Community, and Cultural Infrastructure: approximately 15% of Infrastructure Program funds; and
   (d) Climate Resilience, Coastal, and Stormwater Infrastructure: approximately 10% of Infrastructure Program funds.

   Subject to approval by the City Council, the subprogram allocations may be adjusted in a given fiscal year under the following circumstances: (a) Exact allocations may be refined through the annual expenditure plan pursuant to Section 3.100.030 of this Ordinance in response to infrastructure conditions, funding leverage opportunities, project readiness, and delivery timing; and (b) All expenditures shall remain consistent with the program goals and eligible uses set forth in section 3.100.030.B.

4. Program Categories and Eligible Uses: Funding allocated to the Infrastructure Program shall only be used for the following Eligible Uses as described in section 3.100.030.B.4, and may not be diverted, reprogrammed, or reassigned to unrelated City departments, projects, or expenses. Any funds that are required to be transferred to the General Fund pursuant to this section shall be placed in a restricted subaccount and shall be tracked separately and auditable as Infrastructure Program expenditures, and shall not be used for any non-Infrastructure Program purpose.

   (a) Street and Roadway Infrastructure: Funds allocated to the Street and Roadway Infrastructure subprogram, that is hereby established, shall be used to repair, rehabilitate, reconstruct, operate, and maintain the City's streets and roads to

stabilize and improve the PCI and address unfunded street segments. Eligible uses shall include:

(i) Pavement rehabilitation, resurfacing, reconstruction, and preservation projects;
(ii) Street safety improvements, striping, signage, and traffic control infrastructure;
(iii) Planning, engineering, environmental review, permitting, and project delivery costs;
(iv) Lifecycle maintenance and preventive treatments to extend pavement life; and
(v) Staffing, equipment, materials, and technology necessary to deliver and maintain street improvements.

(b) Sidewalks, Alleys, and Active Transportation Infrastructure: Funds allocated to this Sidewalks, Alleys, and Active Transportation Infrastructure subprogram, that is hereby established, shall be used to improve pedestrian and neighborhood infrastructure, including:

(i) Repair and replacement of uplifted, damaged, or inaccessible sidewalks;
(ii) Americans with Disabilities Act (ADA) compliance upgrades;
(iii) Bus shelters and sidewalk amenities for transit users;
(iv) Improved crosswalks and pedestrian safety measures;
(v) Alley rehabilitation and drainage improvements;
(vi) Bicycle and micromobility infrastructure integrated into street projects; and
(vii) Neighborhood-scale mobility and safety improvements.

(c) Public Facilities, Community, and Cultural Infrastructure: Funds allocated to this Public Facilities, Community, and Cultural Infrastructure subprogram, that is hereby established, shall be used to modernize and maintain City-owned facilities that support essential services and community life, including:

(i) Public safety facilities, libraries, community centers, and service buildings;
(ii) Facilities serving youth, seniors, and families;
(iii) Park infrastructure, recreation amenities, and public gathering spaces;
(iv) Ranchos, historic sites, and cultural assets; and
(v) Facility planning, design, construction, renovation, land acquisition and major maintenance.

(d) Climate Resilience, Coastal, and Stormwater Infrastructure: Funds allocated to this Climate Resilience, Coastal, and Stormwater Infrastructure subprogram, that is hereby established, shall be used to strengthen infrastructure resilience, ensure clean water and protect public assets from climate-related risks, including:

(i) Stormwater capture, flood protection, and drinking or other clean water infrastructure;
(ii) Coastal infrastructure, shoreline protection, and adaptation projects;
(iii) Infrastructure improvements addressing extreme heat and climate impacts;
(iv) Environmental remediation;
(v) Green infrastructure integrated into street and facility projects; and
(vi) Planning and design necessary to access state and federal climate resilience funding.

5. Program Implementation: The City shall develop rules, regulations, requests for proposals, and funding criteria necessary to implement the requirements of section 3.100.030.B in accordance with Program Guidelines developed pursuant to Section 3.100.035.A. Such Program Guidelines shall ensure:

(a) Prioritization of street and roadway investment to help prevent further degradation and demonstrate measurable improvements in pavement condition over time, with transparent reporting of PCI outcomes for completed projects;

(b) Equitable distribution of infrastructure investments, with emphasis on neighborhoods with historic underinvestment, older infrastructure, safety deficiencies, and limited access to public amenities;

(c) Coordination with State and Federal funding programs, including use of Infrastructure Program funds for matching grants, advance design, and project readiness necessary to maximize external funding opportunities;

(d) Authorization of ongoing operational, maintenance, and lifecycle costs, including staffing, equipment, preventive maintenance, and technology required to preserve infrastructure investments over time; and

(e) Clear public reporting and accountability, demonstrating that Infrastructure Program funds result in direct, physical improvements visible in the community and consistent with voter intent.

6. Prohibition on Supplanting: Funds allocated under this section shall supplement, and not supplant, existing City expenditures for Streets and Public Infrastructure projects, except where the City can demonstrate that such programs would not otherwise be funded.

C. Affordable Housing Production, Preservation, Ownership and Stabilization Program.

A minimum of 30% of all revenue generated annually by this Ordinance shall be dedicated to the Affordable Housing Production, Preservation, Ownership and Stabilization Program ("Affordable Housing Program"), or, for all years after the first fiscal year, a minimum of $20 million dollars annually, whichever is greater. The minimum dollar amount shall be increased annually by the Change in Consumer Price Index, not to exceed 3% per year.

1. Program Goals: The goals of the Affordable Housing Program of the Build LB Fund shall include:

(a) Creating a stable, dedicated revenue source to address housing affordability with significant community oversight and transparent public spending;

(b) Acquiring and rehabilitating rental housing as permanently affordable homes, developing new permanently affordable homes, expanding shared-equity homeownership, and investing in locally based stewardship models that ensure permanent affordability;

(c) Preventing homelessness by connecting Long Beach residents vulnerable to homelessness (such as low-income seniors, at-risk youth, survivors of domestic violence, persons with disabilities, formerly homeless individuals and single-parent households) to opportunities created by this Fund or available through other sources through outreach and education, marketing, online portals, programs at community-based organizations and provided by local government, building new partnerships and other methods;

(d) Reducing the flow of residents into homelessness by stabilizing households at risk of eviction; strengthening community-based prevention systems; supporting tenant rights, financial readiness, and housing navigation; and creating multiple pathways for vulnerable residents to access long-term affordable housing or shared-equity ownership opportunities created through this Fund;

(e) Building the capacity of Long Beach residents to participate in homeownership, especially shared-equity homeownership, cooperative housing, resident governance, and stewardship of properties created, preserved, or supported by this Fund;

(f) Strengthening Long Beach's ecosystem of nonprofit developers, community land trusts, resident-led organizations, and service providers to ensure long-term stewardship and sustainability of affordable housing assets;

(g) Addressing the City's need for affordable rental and homeownership options in each council district, to further the City's Regional Housing Needs Assessment goals, and to further the City's goals and strategies identified in the City's Housing Element;

(h) Utilizing public land when feasible and appropriate to maximize the City's investment in and commitment to affordable housing;

(i) Deploying programs in a manner that affirmatively furthers fair housing, addresses racial segregation, promotes racial equity in housing and job opportunities, addresses discrimination based on gender, race, sexuality, disability, age, family status or immigration status; and

(j) While maintaining programs tailored to Long Beach's needs, expanding impact by aligning expenditures of the Fund with other city, regional, state, and federal affordable housing programs to maximize leveraging and accelerate production and preservation of affordable homes.

2. Housing Production, Preservation, Ownership and Stabilization Program Overview. The Affordable Housing Program is hereby established by this section 3.100.030.C, and shall advance permanent affordability, prevent displacement, expand opportunities for community and resident ownership, and increase the supply of stable and affordable homes in the City of Long Beach. The Affordable Housing Program authorizes capital investments, payment of the principal and interest on debt incurred for capital investments, and program operating costs necessary to place new resources into service and keep them functional over time.

3. Allocation of Funds:

   (a) Affordable Housing Program funding shall be allocated among the following subprograms as follows:

      (i) Alternative Models for Permanent Affordable Housing: 40% of Affordable Housing Program funds;

      (ii) Acquisition & Rehabilitation of Affordable Housing: 35% of Affordable Housing Program funds;

      (iii) Tools to Make Homeownership Affordable for Long Beach Residents: 10% of Affordable Housing Program funds; and

      (iv) Homelessness Prevention and Long-Term Resident Stability: 15% of Affordable Housing Program funds.

   (b) Subject to approval by City Council, the subprogram allocations may be adjusted in a given fiscal year under the following circumstances:

      (i) The reallocated funds will be used toward projects that accomplish three or more Priority Eligible Uses as defined in sections 3.100.030.C.4(a)(v) and 3.100.030.C.4(b)(x).

      (ii) The City Manager or other designated officials or departments present a rationale for the reallocation of a subprogram in the Annual Expenditure Plan submitted to the Community Oversight Committee and to City Council,

including an explanation of how the reallocation will increase funding towards projects that accomplish Priority Eligible Uses.

(iii) No more than 50% of subprograms 3.100.030.C.3(a)(i), (ii), and (iii) is reallocated in any year, and there is no reallocation of subprogram 3.100.030.C.3(a)(iv).

(iv) In the event of a subprogram reallocation, that subprogram will be adjusted within the subsequent two years to bring allocations back into alignment with section 3.100.030.C.3(a) so that the mandated allocation is met over a three-year period, and will account for anticipated revenue fluctuations and payment schedules required by any debt secured against future revenue.

4. Program Categories and Eligible Uses: Funding allocated to the Affordable Housing Program shall only be used for the following Eligible Uses as described in section 3.100.030.C.4, and may not be diverted, reprogrammed, or reassigned to unrelated City departments, projects, or expenses. Any funds required to be transferred to the General Fund pursuant to this section shall be placed in a restricted subaccount and shall be tracked separately and auditable as Affordable Housing Program expenditures, and shall not be used for any non-Affordable Housing Program purpose. Allocations from the Build LB Fund may also be to a non-profit corporation organized exclusively for charitable purposes under Section 501(c)(3) of the Internal Revenue Code that has been organized by the City for the purposes of administering affordable housing, neighborhood improvement, and community and economic development programs, to administer all or part of the Build LA Programs consistent with section 3.100.030.C.

   (a) Alternative Models for Permanent Affordable Housing: Funds allocated to the Alternative Models for Permanent Affordable Housing subprogram, that is hereby established, shall support the construction or adaptive reuse of new permanent affordable rental, homeownership, or mixed rental/homeowner projects of any size, or to pay the principal and interest on debt incurred for such purpose. This funding is subject to the following conditions:

      (i) To qualify for funding, an applicant must be organizationally and operationally qualified.

         (1) An applicant is organizationally qualified if it is a.) a non-profit entity within Internal Revenue Code Section 501(c)(3); b.) a Community Land Trust; c.) a Limited-Equity Housing Cooperative; d.) a limited partnership or limited liability company in which only bona fide nonprofit corporations, Community Land Trusts, and/or Limited-Equity Housing Cooperatives are the general partners or managing members; or e.) a limited partnership whose general partner is a single-member limited liability company wholly controlled by an entity described in 3.100.030.C.4(a)(i)(1)(a-d).

         (2) An applicant is operationally qualified if it can demonstrate a history of affordable housing development and/or affordable housing property management experience, as those terms are defined in the Program Guidelines developed pursuant to section 3.100.035.A. Community Land Trusts and Limited-Equity Housing Cooperatives may be operationally qualified without demonstrating a history of affordable housing development and/or affordable housing property management experience by partnering with an operationally qualified entity or

showing evidence of staffing capacity adequate to manage and administer the affordable housing project, as defined in the Program Guidelines.

(ii) For 100% rental projects, or projects with a mix of rental and ownership, a minimum of 20% of a project's housing units shall be reserved for ALI and/or ELI households. All units shall be subject to a covenant that meets the requirements of section 3.100.030.C(5)(b) and requires that all units be affordable to and occupied by Lower Income Households, except that according to criteria established within the Program Guidelines and consistent with the purposes of this section 3.100.030.C, and only for the purpose of increasing the financial stability of ALI, ELI, and VLI units in the project, up to 20% of units may be unrestricted as to income and rent levels. For 100% ownership projects, affordability requirements will be determined in Program Guidelines developed pursuant to Section 3.100.035.A, with affordability not to exceed MI levels, and with a preference for ownership that reaches LI, VLI and/or ELI.

(iii) Eligible costs, to be defined in further detail in the Program Guidelines developed pursuant to Section 3.100.035.A may include: predevelopment and due diligence costs; development costs including acquisition, soft costs, construction costs and developer fees; resident governance trainings, including formation of resident councils and preparation for resident ownership; and capitalized operating subsidy reserves.

(iv) Projects shall include resident governance structures, and may include pathways to resident ownership and shared-equity.

(v) Priority Eligible Uses will include projects that: achieve deeper affordability, including maximizing the number of units for ALI and/or ELI households; include a Community Land Trust as applicant; have a plan for resident ownership, or a plan for future conversion to resident ownership; and establish permanent affordability.

(vi) Scoring criteria, as directed in the Program Guidelines developed pursuant to section 3.100.035.A shall preference projects with Priority Eligible Uses.

(b) Acquisition & Rehabilitation of Affordable Housing: Funding allocated to the Acquisition & Rehabilitation of Affordable Housing subprogram, that is hereby established, shall support the acquisition, rehabilitation, and permanent preservation of existing unsubsidized multifamily rental properties occupied by Lower Income Households, or the acquisition, rehabilitation and preservation of covenanted affordable housing rental properties that are at-risk of converting to market-rate upon expiration of those covenants, or to pay the principal and interest on debt incurred for such purpose. This funding is subject to the following conditions:

(i) To qualify for funding, an applicant must be organizationally and operationally qualified.

(1) An applicant is organizationally qualified if it is a.) a non-profit entity within Internal Revenue Code Section 501(c)(3); b.) a Community Land Trust; c.) a Limited-Equity Housing Cooperative; d.) a limited partnership or limited liability company in which only bona fide nonprofit corporations, Community Land Trusts, and/or Limited-Equity Housing Cooperatives are the general partners or managing members; or e.) a limited partnership whose general partner is a single-member limited

liability company wholly controlled by an entity described in 3.100.030.C.4(b)(i)(1)(a-d).

(2) An applicant is operationally qualified if it can demonstrate a history of affordable housing development and/or affordable housing property management experience, as those terms are defined in the Program Guidelines developed pursuant to Section 3.100.035.A. Community Land Trusts and Limited-Equity Housing Cooperatives may be operationally qualified without demonstrating a history of affordable housing development and/or affordable housing property management experience by partnering with an operationally qualified entity or showing evidence of staffing capacity adequate to manage and administer the affordable housing project, as defined in the Program Guidelines.

(ii) Funds will be used for the following project types:

(1) Acquisition and rehabilitation of unsubsidized multifamily rental properties of three units and larger, to be converted to permanently affordable housing. A minimum of 70% of Acquisition & Rehabilitation of Affordable Housing subprogram funding over a three-year period will be utilized for this project type.

(2) Acquisition of housing properties that are within 10 years of expiration of affordability covenants, are owned by a for-profit owner, and/or which have been classified by the City as at high-risk of converting to market rate upon expiration. The City shall facilitate the use of funds from this Acquisition and Rehabilitation of Affordable Housing Program to make offers to purchase assisted housing developments which are required to provide qualified entities an opportunity to purchase under California Government Code Section 65863.11 by acting within the deadlines established by that law.

(3) Acquisition, rehabilitation and/or recapitalization of properties with affordability covenants that are facing conditions of physical or financial distress.

(iii) Eligible Costs, in conjunction with the above project types, to be defined in further detail in the Program Guidelines developed pursuant to Section 3.100.035.A may include: predevelopment and due diligence costs; development and rehabilitation costs including acquisition, soft costs, construction; rehabilitation to address habitability, life-safety, code compliance, seismic improvements, energy efficiency, and accessibility, and developer fees; Capitalized Operating Subsidy Reserves (COSR); resident governance trainings, including formation of resident councils or committees and preparation for cooperative or shared-equity transitions; and costs to acquire, install, construct, or rehabilitate housing, including Unauthorized Dwelling Units ("UDUs"), Accessory Dwelling Units ("ADUs") and Junior Accessory Dwelling Units ("JDUs"), so long as all UDUs, ADUs and JDUs are used as affordable rental housing or affordable homeownership, and are associated with a project currently or previously funded through this Program.

(iv) A majority of a property's units must be occupied by Lower Income Households upon acquisition, which shall be assumed if a majority of tenants return

attestations that their incomes are at or below the Lower Income level in a manner the City shall determine.

(v) A building with less than 50% total occupancy can only be acquired by a.) a Community Land Trust; b.) a limited partnership or limited liability company in which only a Community Land Trust is the general partner or managing member; or c.) a limited partnership whose general partner is a single-member limited liability company wholly controlled by a Community Land Trust.

(vi) Projects shall serve households at or below 80% of Area Median Income (AMI), with deeper affordability where feasible, with affordability achieved through unit turnover.

(vii) Existing residents of properties acquired pursuant to this program shall not be permanently displaced, even if their incomes exceed the Lower Income Household limits, or any lower income limit set for a unit.

(viii) Projects shall include resident governance structures, and may include resident ownership or pathways to future resident ownership and shared-equity.

(ix) Project funding may take the form of grants or loans but shall not require the leveraging of additional forms of funding if such additional funding makes any of the conditions set forth in this section infeasible, or if funding precludes the future conversion of the property to resident ownership.

(x) Priority Eligible Uses will include projects that: prevent displacement; have a Community Land Trust as an applicant; have a plan for resident ownership or a plan for future conversion to resident ownership, including shared-equity or cooperative ownership; and establish permanent affordability.

(xi) Scoring criteria, as directed in the Program Guidelines developed pursuant to Section 3.100.035.A shall preference projects with Priority Eligible Uses.

(c) Tools to Make Homeownership Affordable for Long Beach Residents: Funds allocated to the Tools to Make Homeownership Affordable for Long Beach Residents subprogram shall expand access to affordable homeownership opportunities for households unable to enter traditional ownership markets. This funding is subject to the following conditions:

(i) Eligible Uses are:

(1) Downpayment assistance and subordinate financing for ELI, VLI, LI, and MI households purchasing shared-equity or resale-restricted homes;

(2) Support for sale and resales within Community Land Trusts, Limited-Equity Housing Cooperatives, resale-restricted affordable condominiums, resale-restricted affordable tenancies-in-common, and other shared-equity or fractional ownership models;

(3) Acquisition or development subsidies that reduce the cost of shared-equity ownership opportunities for households meeting income thresholds established by Program Guidelines, with priority for reaching deeper affordability levels; and

(4) Development of long-term resale formulas, ground leases, and stewardship agreements that preserve affordability for future households.

(ii) Only in the case that funds are not expended through the Eligible Uses above, are Other Eligible Uses:

(1) Downpayment assistance through the City of Long Beach's First-Time Homebuyer Assistance Program; and

(2) To leverage or supplement affordable homeownership programs funded by the state, county, and/or regional agencies.

(iii) Notwithstanding the reallocation procedure outlined in section 3.100.030.C.3, unused funds in this subprogram may be reallocated to the Acquisition & Rehabilitation of Affordable Housing subprogram if ownership demand or production does not meet annual targets, provided that such reallocation is consistent with Program Guidelines and long-term affordability requirements.

(iv) Programs shall serve households at or below 120% of AMI, with deeper affordability where feasible.

(v) Priority Eligible Uses will include projects that: achieve deeper affordability at 80% AMI and below; and have a Community Land Trust as an applicant.

(vi) Scoring criteria, as directed in the Program Guidelines developed pursuant to subsection 3.100.035.A shall preference projects with Priority Eligible Uses.

(d) Homelessness Prevention and Long-Term Resident Stability: Funds allocated to the Homelessness Prevention and Long-Term Resident Stability subprogram, that is hereby established, shall support programs and essential organizational infrastructure to prevent homelessness, stabilize vulnerable residents, and prepare households for resident governance and ownership opportunities. This funding is subject to the following conditions:

(i) 50% of funding allocated to the Homelessness Prevention and Long-Term Resident Stability subprogram annually shall be allocated to the Tenant Stability and Homelessness Prevention sub-subprogram. The Tenant Stability and Homelessness Prevention sub-subprogram will be subject to the following conditions:

(1) Eligible Uses are:

(A) Community-based outreach, education, and tenant-stability services in neighborhoods with high displacement risk focused on preventing homelessness by stabilizing tenants in their homes;

(B) Navigation and referral services linking residents to legal aid, emergency rental assistance, financial counseling, and other tenant stabilization services. These navigation services funds are complimentary to and in addition to, and shall not supplant, funding provided by the county, regional agencies, and/or state funding programs for similar services;

(C) Formation and support of resident councils in occupied multifamily rental properties which are targeted for acquisition and rehabilitation to train tenants in housing governance; practices, and/or in rental buildings of any type where residents seek stronger participation in achieving housing stability; and

(D) Capacity-building grants for tenant-rights groups engaged in provision of the above services.

(2) To qualify for funding, an applicant must:

(A) Be a non-profit entity within Internal Revenue Code Section 501(c)(3) or operating under a non-profit fiscal sponsorship;

(B) Have its principal place of business in the City of Long Beach;

(C) Demonstrate experience advocating for social housing, tenants' rights education and enforcement, and enforcement regarding

the provision of deed-restricted affordable housing to Lower Income Households;

(D) Demonstrate a minimum of three years of experience with tenant unions or other approaches to activating tenants to advocate for their shared interests in the City of Long Beach; and

(E) Not be an organization that has for-profit housing providers as its principal members or constituents.

(ii) 50% of funding allocated to the Homelessness Prevention and Long-Term Resident Stability subprogram annually shall be allocated to the Ownership Readiness & Housing Stewardship sub-subprogram. The Ownership Readiness & Housing Stewardship sub-subprogram will be subject to the following conditions:

(1) Eligible Uses are:

(A) Training in cooperative governance, financial readiness, and long-term stewardship for residents transitioning into shared-equity or community-ownership models;

(B) Staffing and operations of community-based stewardship programs to implement and monitor shared-equity and cooperative ownership; and

(C) Capacity-building grants to build organizational capacity for real estate development, preservation of affordability for Long Beach residents, and resident governance practices.

(2) To qualify for funding, an applicant must:

(A) Be a non-profit entity within Internal Revenue Code Section 501(c)(3);

(B) Have its principal place of business in the City of Long Beach;

(C) Have among its purposes the decommodification of land used for housing;

(D) Be legally organized as a membership organization within the meaning of section 5310 of the California Corporations Code;

(E) Require that members elect all of the organization's board of directors;

(F) Require that at least one third of the board of directors seats are reserved for residents of properties on land the applicant owns or stewards; and

(G) Demonstrate a minimum of three years of experience with policy and program implementation related to community land stewardship and permanent affordability.

5. Program Implementation:

(a) The City shall develop rules, regulations, requests for proposals, and funding criteria necessary to implement the requirements of section 3.100.030.C in accordance with Program Guidelines developed pursuant to Section 3.100.035.A. Such Program Guidelines shall ensure:

(i) Compliance with the allocations set forth in Section 3.100.030.C.3 and 4.;

(ii) Prioritization of projects that accomplish the Priority Eligible Uses as defined in sections 3.100.030.C.4(a)(v) and 3.100.030.C.4(b)(x);

(iii) Coordination and alignment with other city, regional, state, and federal affordable housing programs, provided that such coordination does not supersede, override, or dilute the goals, eligibility standards, or community ownership and stewardship models established by this Ordinance, and is used to maximize leveraging and accelerate production and preservation of affordable homes; and

(iv) Transparency in funding decisions, annual reporting, and public oversight as required by section 3.100.035.B and Section 3.100.040.

(b) Expenditure of funds for the Affordable Housing Program shall require, to the maximum possible extent and consistently with federal and state law, that funded projects comply with the following requirements:

(i) Affordability. All units in a funded project shall be affordable to and occupied by ALI, ELI, VLI and/or LI Households, except as allowed by sections 3.100.030.C.4(a)(ii) and 3.100.030.C.4(c) of this Ordinance, which may also serve Moderate Income (MI) Households, and section 3.100.030.C.3(b)(vii) regarding existing residents of acquired properties. The City shall adopt a policy to prevent the displacement of households that qualified for a unit upon initial occupancy but thereafter exceed the income limits. Such households may be charged a rent or maintenance fee commensurate with their current income levels.

(ii) Covenants. The programs described in sections 3.100.030.C.4(a-c) of this Ordinance are intended to provide dedicated permanent housing that is affordable to households at the respective levels of income (e.g., ALI, ELI, VLI, LI and MI) that occupy the housing units, whether as owner-occupants or tenants, and whose housing cost or rent does not exceed the affordable housing cost or affordable rent for households at such income levels. Each property and each affordable housing unit funded through said Programs shall be made subject to a recorded covenant acceptable to the City and recorded with the Los Angeles County Recorder, that meets each of the following requirements:

(1) Each housing unit in the project shall be used exclusively as a residence for households at the respective income level.

(2) The housing cost or rent for such housing unit shall be no more than an affordable housing cost or affordable rent at the respective level of income.

(3) No housing unit may be leased or subleased, except to a household at the level of affordability and for no more than an affordable rent for which the unit was dedicated.

(4) The use of any housing unit as a short-term rental shall not be permitted, even if otherwise consistent with other state or local laws regulating short-term rentals.

(5) Any resale of rental property funded by this initiative shall be prioritized to non-profit entities or Limited-Equity Housing Cooperatives, including but not limited to affordable housing corporations and Community Land Trusts, to ensure the continued use of the dwelling units as affordable housing as provided in this section.

(iii) In the case of owner-occupied housing units, with the exception of those acquired through programs funded pursuant to section 3.100.030.C.4(c)(ii), initial sales and all resales shall be restricted to purchasers whose household

income does not exceed the income level to which the unit is dedicated and who do not pay in excess of affordable housing cost at that income level; or LEHC or similar entities providing for resident ownership and affordability in perpetuity with an average affordability level for Lower Income Households and which allows not more than 20% of units to be owned and occupied at unrestricted market rates. Unrestricted market rate units shall not be used to calculate average affordability of units in a project.

(iv) The term of the affordability restrictions contained in the covenant shall be in perpetuity, or for such other maximum length of time as may be permitted by applicable law.

(c) Replacement, Relocation and Right of First Refusal. Funding provided pursuant to the Affordable Housing Program shall be subject to the following conditions:

(i) Any funded development on any property that includes a parcel or parcels that currently have residential uses, or within the five years preceding the application for funding have had residential uses that have been vacated or demolished, that are or were subject to a recorded covenant, ordinance, or law that restricts rents to levels affordable to Lower Income Households, subject to any other form of rent or price control through a public entity's valid exercise of its police power, or occupied by Lower Income Households, shall comply with the requirements in California Government Code Section 65915(c)(3), provided, however, that any dwelling units that are or were, subject to a form of rent or price control through a public entity's valid exercise of its police power and that are or were occupied by a household with income above Lower Income Household limits shall be replaced with units affordable to, and occupied by, Lower Income Households. Moreover, replacement units shall be made available at affordable rent or affordable housing cost to, and occupied by, persons and families in the same or lower income category as those households in occupancy or, if the units have been vacated or demolished, those households formerly in occupancy, including Acutely Low, Extremely Low, Very Low, and Low Income Households. If the incomes of the households in occupancy, or formerly in occupancy, are not known, it shall be rebuttably presumed that (i) Extremely Low, Very Low, and Low Income Households occupied these units in the same proportion as the proportion of renter households that are Extremely Low, Very Low, and Low Income Households to all renter households within the City, as determined by the most recently available data from the United States Department of Housing and Urban Development's Comprehensive Housing Affordability Strategy database, and (ii) the proportion of Acutely Low Income Households is one-half the proportion of Extremely Low Income Households.

(ii) If existing occupants must be relocated, for any period of time, the developer is required to provide them relocation benefits pursuant to Chapter 16 (commencing with Section 7260) of Division 7 of Title 1 of the Government Code and Chapter 8.99 of the Long Beach Municipal Code, including associated regulations. In order to effectuate the provisions of Chapter 16 of Division 7 of Title 1 of the Government Code, and in addition to all other relocation obligations, the developer shall prepare a relocation plan, and the City shall require the plan to offer occupants reasonable choices of specifically identified comparable replacement dwellings available at the time of the offer, for which

the household qualifies and is appropriate, and which is affordable to the household.

(iii) In addition to the relocation benefits described above, the developer shall provide a right of first refusal for a comparable unit available in the new or rehabilitated housing development. For Lower Income Households, that unit must be affordable to the household at an affordable rent or an affordable housing cost. If such occupants do not meet the eligibility requirements of one or more funding sources of the new or rehabilitated housing development, or for any other reason do not occupy units in the new or rehabilitated housing development, the occupants shall be given priority in renting or buying housing in other developments funded by the Affordable Housing Program. The Department shall keep a list of occupants displaced by such developments and may establish reasonable rules for determining the order of priority of those listed.

(iv) Nothing in this section shall be read to prohibit the City Council from adopting unit replacement requirements, relocation assistance requirements, or right of first refusal requirements that are more protective of displaced occupants than the requirements of this section. Solely for the purpose of Section 3.100.030.C.5.c governing replacement, relocation and right of first refusal, "affordable rent" shall have the same meaning as defined in Section 50053 of the California Health and Safety Code, and "affordable housing cost" shall have the same meaning as defined in Section 50052.5 of the California Health and Safety Code.

6. Prohibition on Supplanting: Funds allocated under this section 3.100.030.C shall supplement, and not supplant, existing City expenditures for affordable housing production, preservation, ownership and stabilization programs. The City may deviate from this requirement only upon a finding, supported by written documentation and adopted at a public hearing, that a reduction in baseline funding is necessary due to an extraordinary fiscal condition materially impacting the City's General Fund revenues, and the deviation is narrowly tailored and limited in duration. Any such deviation shall require review by the Community Oversight Committee, which may issue an advisory opinion, and approval by City Council. All deviations shall be disclosed in the Build LB Annual Report.

7. To the extent the expenditure of any monies from the Build LB Fund results in, or contributes to, the development, construction, or acquisition of low rent housing projects in the City by public agencies, that development, construction, or acquisition is hereby deemed authorized by the People, having been duly approved by a majority of qualified electors of the City, and with such authorization constituting the approval required by Article XXXIV of the California Constitution. The development, construction, and/or acquisition of low rent housing units authorized by this section shall be in addition to any other authorization of the development, construction, and/or acquisition of such housing by the voters of the City before or after adoption of this section. This section in no way restricts or limits the City's authority to develop or assist in the development of housing that is not subject to Article XXXIV. This section 3.100.030.C.7. shall be interpreted to maximize affordable housing production and acquisition. As used in this section 3.100.030.C.7. the terms "public entity", "develop", "construct", "acquire", and "low rent housing projects" shall be interpreted in accordance

with Article XXXIV of the California Constitution, California Health and Safety Code Section 37000 et seq., and any successor legislation thereto.

D. City Services Stabilization and Program Support Program.

A maximum of twenty-five percent (25%) of all revenue generated annually by this Measure shall be allocated to the City Services Stabilization and Program Support Program ("Stabilization Program") to prevent the reduction of specific City services that are necessary and essential to the successful implementation and ongoing operation of the Programs identified in sections 3.100.030.A, 3.100.030.B, 3.100.030.C, and to public health services in the City. Funds allocated pursuant to this section shall be used solely to stabilize existing service levels and shall not be used to expand unrelated City programs.

1. Program Goals: The goals of the City Services Stabilization and Program Support Program shall include:
   (a) Preventing reductions to essential City services that Long Beach residents expect and depend on;
   (b) Stabilizing the City's operating budget in the face of a documented structural deficit, thereby enabling the City to implement service enhancements authorized by this Ordinance without simultaneously cutting foundational services;
   (c) Preserving quality-of-life services relied upon by residents, including but not limited to public health, public safety, parks, libraries, neighborhood maintenance, code enforcement, and community programs that are integral to safe neighborhoods and successful infrastructure and housing investments;
   (d) Protecting service access in low-income and historically underserved neighborhoods, which are disproportionately impacted by reductions to City services and rely most heavily on consistent public operations;
   (e) Maintaining organizational capacity and internal support functions necessary for capital project delivery, emergency response, housing production, and infrastructure maintenance; and
   (f) Ensuring transparent, accountable, and purpose-limited use of funds.

2. Program Overview: The City Services Stabilization and Program Support Program is hereby established to address documented fiscal challenges to the City, so that the City can successfully deliver the infrastructure, housing, and public safety enhancements authorized by this Ordinance, and funding for public health services. Without an ongoing source for stabilization, budget pressures are expected to result in significant reductions across City departments, including those responsible for delivering and supporting Fire & EMS, Affordable Housing, and Streets & Public Infrastructure Programs established by or set forth in this Ordinance, and for public health services in the City.

3. Allocation of Funds: Stabilization Program funding shall be allocated annually to services with a clear operational nexus to the Fire & EMS, Affordable Housing, and Public Infrastructure Programs, and to public health. Allocations shall be established through the Annual Expenditure Plan pursuant to Section 3.100.030 in response to fiscal conditions, service demands, and demonstrated need, provided that:
   (a) Stabilization funds are used solely to prevent reductions to existing service levels;

(b) Stabilization Program allocations shall be limited to services and operational support functions with a direct and documented nexus to implementing, maintaining, administering, or delivering the voter-approved Programs in sections 3.100.030.A, 3.100.030.B, 3.100.030.C., and to public health; and

(c) Stabilization funds shall not be used as a replacement for General Fund support for unrelated City operations or for purposes that do not materially support implementation of the voter-approved Programs in sections 3.100.030.A, 3.100.030.B, 3.100.030.C, and for public health services in the City.

4. Program Categories and Eligible Uses: Funding allocated to the Stabilization Program shall only be used for the following Eligible Uses as listed above in section 3.100.030.D.3(a-c), and may not be diverted, reprogrammed, or reassigned to unrelated City departments, projects, or expenses.

5. Program Implementation: The City shall develop rules, regulations, requests for proposals, and funding criteria necessary to implement the requirements of section 3.100.030.D in accordance with Program Guidelines developed pursuant to section 3.100.035.A. Such Program Guidelines shall ensure:
   (a) Prioritization of services most at risk of reduction due to structural budget shortfalls, particularly those with disproportionate impacts on low-income neighborhoods and communities with limited access to alternatives;
   (b) Transparency and public reporting, including identification of services stabilized, departments supported, and impacts avoided as a result of Ordinance funding;
   (c) Fiscal discipline, ensuring Stabilization Program funds are used as a bridge to maintain service continuity; and
   (d) Citywide benefit with equity-focused outcomes, recognizing that while impacts of service reductions would be felt throughout Long Beach, West, Central, and North Long Beach would experience the most severe consequences absent stabilization.

6. Prohibition on Supplanting: Funds allocated under this section shall supplement, and not supplant, existing City expenditures for city services, except where the City can demonstrate that such programs would not otherwise be funded. Any such supplantation shall require review by the Community Oversight Committee, which may issue an advisory opinion, and approval by City Council.

3.100.035 ADMINISTRATION AND RULEMAKING.

A. Administration. Administration of this Ordinance shall include the following:

1. The City Council may review, approve and adopt the Program Guidelines developed by the City Manager with advisory input by the Program Guidelines Working Group and Community Oversight Committee pursuant to Section 3.100.040.B of this Ordinance. The City Council may amend the recommended guidelines consistent with the findings, purposes, and provisions of this Ordinance. Before the City Council amends the Program Guidelines, any proposed amendments shall be shared with the Community Oversight Committee, which shall opine on whether the proposed amendments are consistent with the findings, purposes, and provisions of this Ordinance. The COC may provide an advisory opinion regarding the proposed amendments to the City Council for their consideration.

2. The City Council may adopt rules, regulations, procedures, reporting requirements, financial management standards, and additional administrative funds or subaccounts as needed, provided that all such actions are consistent with and further the purpose of this Ordinance.
3. The Office of the City Manager, in coordination with appropriate City officials provided by law, and the County of Los Angeles as applicable, shall administer the Build LB Fund and ensure that revenues are collected, accounted for, and expended consistent with the purposes and provisions set forth in this Ordinance. The City Manager or designee may issue rules, regulations, or procedures as necessary to implement and enforce this Ordinance, consistent with its intent and the allocations established herein.
4. In addition to the Program expenditures detailed in Section 3.100.030, monies in the Build LB Fund may be used to pay the costs of the following:
   (a) Audits of the use of monies in the Build LB Fund.
   (b) The City's costs of the election required to obtain voter approval of the tax authorized by this Ordinance.
   (c) The costs of administering the special tax, regardless of how or by what entity those administrative services are provided.
   (d) Reimbursement to the County for the costs it incurs in collecting the tax.
   (e) If this Ordinance or the use of tax funds is legally challenged, tax funds may be used to reimburse the City for its costs of legal defense, including attorneys' fees and other expenses.
   (f) Other implementation expenses as required by the City to successfully initiate, monitor, evaluate and expend the tax revenue, including but not limited to operation of the Community Oversight Committee per Section 3.100.040.
5. No more than 10% of the revenue deposited into the Build LB Fund in any single year may be used to pay for such administrative costs, except that revenue used to pay for the costs of the Community Oversight Committee established by Section 3.100.040 shall not count toward this 10%, and the costs for establishing and operating the process to provide Low- and Middle Income Residents with an exemption shall not count toward this 10%. Notwithstanding the foregoing, the City shall be reimbursed for its actual costs of establishing the program for collecting the tax, the cost of which shall be confirmed by the Financial Management Department.
6. All expenditures in Section 3.100.035.A.4. and 5. shall appear in the Annual Expenditure Plan as part of the Stabilization Program budget, and not be accounted for under, nor diminish annual allocations for Fire & EMS Program, Infrastructure Program or Affordable Housing Program.

B. Reporting to the Public. Activities to enhance transparency and accountability shall include:

1. The City Manager shall maintain a public-facing online dashboard tracking revenues, expenditures, and outcomes across Build LB Program areas.

2. Each year, a Block the Cuts and Build Long Beach Annual Report ("Build LB Annual Report") shall be prepared by the City Manager, presented to the Community Oversight Committee and to City Council, and made publicly available, summarizing: (a) Total revenues collected and allocated; (b) Expenditures by Build LB Program; (c) Measurable outcomes related to program goals established for each Build LB Program; and (d) Any recommendations from the Community Oversight Committee.

C. **Authority to Amend.** The following provisions outline authority related to amendments of, and/or relating to the Ordinance:

1. Every three years, the Community Oversight Committee shall review outcomes and may recommend changes to the Program Guidelines to the City Manager as well as reallocation of up to 5% between Build LB Programs, provided that Fire & EMS Program does not at any point fall below 10%, and the Affordable Housing Program does not at any point fall below 30%, subject to City Council approval following a public hearing.

2. The City Council may amend this Ordinance or any implementing ordinance by an affirmative vote of at least a majority of its members, provided that:
   (a) The amendment furthers the purposes of this Ordinance and the goals of the Build LB Programs;
   (b) No amendment to Section 3.100.030.A reduces the Program allocation below 10% of total program funds, reduces the projected allocation below $7 million dollars, or eliminates Program Categories or Eligible Uses pursuant to section 3.100.030.A.4;
   (c) Any amendment to section 3.100.030.A shall further or facilitate the Program Goals in section 3.100.030.A.1 and ensure that monies are expended pursuant to section 3.100.030.A.3;
   (d) No amendment to Section 3.100.030.C reduces the Program allocation below 30% of total program funds, reduces the projected allocation below $20 million dollars, or eliminates Program Categories or Eligible Uses pursuant to section 3.100.030.C.4;
   (e) Any amendment to Section 3.100.030.C shall further or facilitate the Program Goals in section 3.100.030.C.1 and ensure that monies are expended pursuant to section 3.100.030.C.3;
   (f) No amendment by City Council shall increase the maximum parcel tax rate established in Section 3.100.020 of this Ordinance or alter the purposes for which the proceeds may be used, unless such amendment is approved by voters voting thereon; and
   (g) No amendment shall diminish the accountability, oversight, or transparency requirements established in Section 3.100.040 of this Ordinance.

3. Prior to adoption of any amendment, the Community Oversight Committee may review the proposed amendment and may express an advisory opinion as to whether it furthers the purposes stated in 3.100.030 and remains consistent with the expenditure categories defined herein.

4. The City Council may adopt technical or conforming amendments to: ensure consistency with State or Federal law; modify administrative processes or collection methods; or reassign administrative duties among City departments or officials. such amendments shall be duly reported to the Community Oversight Committee, but do not require review in advance nor approval by the Community Oversight Committee.

3.100.040 COMMUNITY OVERSIGHT AND ACCOUNTABILITY.

There is hereby established a Block the Cuts and Build Long Beach Community Oversight Committee ("Community Oversight Committee" or "COC") to monitor that the revenue generated by the Block the Cuts and Build Long Beach Ordinance is expended only for the purposes specified in Section 3.100.030, to report the findings of its review to the City Council and to the public, and to promote transparency, accountability, and equitable implementation.

A. Community Oversight Committee Establishment. The COC will be established and will operate as follows:

1. By July 1, 2027, the Community Oversight Committee shall be convened.

2. The Community Oversight Committee shall consist of seven (7) voting members and one (1) non-voting member, recruited through an open application call, appointed by the Mayor from the application pool, and confirmed by the City Council, with representation across the four program areas:
   (a) Seat #1: An individual with expertise in fire and emergency medical services operations and training;
   (b) Seat #2: An individual with expertise in non-profit affordable housing production and financing;
   (c) Seat #3: An individual with expertise in non-profit affordable housing preservation and community land trust strategies;
   (d) Seat #4: An individual with expertise in tenant protection, resident education, and homelessness prevention programs and/or policy;
   (e) Seat #5: An individual with expertise in public works financing and/or implementation;
   (f) Seat #6: An individual with expertise in labor and workforce representation;
   (g) Seat #7: An individual with lived experience of housing insecurity, and/or from historically underinvested neighborhoods;
   (h) Seat #8: One advisory, non-voting member of the COC shall be an individual between the ages of 16 and 21.

3. Members shall serve staggered three-year terms, with initial appointments divided between three-year terms (odd numbered seats) and two-year terms (even-numbered seats) to ensure continuity. Members may be reappointed to three consecutive terms. Members shall be current residents of the City of Long Beach. Members may not hold elected office.

B. Development of Program Metrics and Program Guidelines.

1. By February 1, 2027, the City Manager shall oversee establishment of a Program Guidelines Working Group which shall advise the City Manager as to the City Manager's development of Program Guidelines for all four Build LB Programs. The Program Guidelines Working Group shall serve as the Community Oversight Committee required by section 3.100.040.A on an interim basis until such time as that body has been established per this ordinance. The Program Guidelines Working Group shall be appointed by the Mayor and shall consist of five members with expertise in one or more of the program areas as follows:
   (a) One member with expertise in fire safety and emergency medical services who is a member of a worker's union based in the City of Long Beach;
   (b) One member with expertise in streets and infrastructure or essential city services;
   (c) One member with expertise in advocating for the interests of tenants, low-income residents, and public infrastructure users and who is a member of a coalition that advocates for these constituents in the City of Long Beach;
   (d) One member with expertise in non-profit affordable housing and social housing production; and
   (e) One member with expertise in affordable housing preservation and community land trust strategies.

2. Prior to the establishment of the Community Oversight Committee, the Program Guidelines Working Group shall have access to resources and authority specified in sections 3.100.040.C and 3.100.040.D in the same manner and to the same degree as the Community Oversight Committee.

3. Upon the establishment of the Community Oversight Committee in accordance with section 3.100.040.A, the COC will:
   (a) Advise the City Manager concerning program metrics for evaluation of all Build LB Programs; and
   (b) Provide guidance and make recommendations to the Program Guidelines Working Group and the City Manager on the Program Guidelines. The City Manager shall review the recommendations of the Program Guidelines Working Group and the COC when developing final Program Guidelines which will be presented to the City Council for consideration and approval.

C. Ongoing Community Oversight Committee Responsibilities and Authorities. In addition to the responsibilities in Section 3.100.030 and in section 3.100.040.B above, the Community Oversight Committee shall have the authority to:

1. Make requests to City staff and/or consultants tasked by the City with administering and supporting the work of the Community Oversight Committee;
2. Request reports from managers of City departments and chairs of City Council committees, receive access to information relevant to its work, and be authorized to receive relevant information from other City entities as required under this Ordinance, which the City Manager shall collect and provide;
3. Receive and review copies of the City's annual financial reports and any associated audits; or request that the City conduct audits, if not prepared. The COC may request and receive supplemental support from the City Manager or such City staff or consultants designated by the City Manager to support the COC's review and analysis of financial audits and reports.
4. Reconvene a Program Guidelines Working Group, with membership consistent with section 3.100.040.B.1, to provide advice to the City Manager on future amendments to the Program Guidelines;
5. Hold at least four COC meetings annually, meetings shall be duly noticed pursuant to Brown Act requirements and open to the public and with opportunities for community input;
6. Receive reports from City Departments on progress and challenges with program implementation;
7. Hold an annual town hall to promote transparency, report on the progress and shortcomings of the Block the Cuts and Build Long Beach Ordinance, the Build LB Fund and the Build LB Programs, to report on and receive input on recommended changes to the programs, and to hear from the public; and
8. As a minimum, every three years, the COC will review program outcomes relative to the metrics established pursuant to section 3.100.040.B and make recommendations for adjustments to the Program Guidelines established by the City Manager pursuant to section 3.100.040.B in order to better achieve the Program Goals established for each program.

D. Community Oversight Committee Staffing and Resources. The City shall provide dedicated staff support to the Community Oversight Committee and resources, as required, for administration, staffing, evaluation, translation, report preparation and delivery, public meetings and other activities related to the COC's oversight responsibilities.

3.100.045 EFFECTIVE DATE.

The proposed ordinance that is the subject of this initiative, once approved by the voters at the next regular election, or such other election as authorized by law, shall be deemed adopted upon the date that the vote is declared by the Long Beach City Council, and shall go into effect ten (10) days after that date.

This Ordinance shall remain in effect until repealed by the voters of the City of Long Beach, and all revenues derived from it shall be used exclusively for the purposes set forth in this Ordinance.

3.100.050 LABOR PROVISIONS.

A. It is the intent of this Section 3.100.050 to encourage the development of local job opportunities and career pathways into the building and construction trades, including but not limited to apprenticeship and pre-apprenticeship programs.

B. Any projects funded by this Ordinance through Programs outlined in section 3.100.030.A, section 3.100.030.B, and section 3.100.030.D shall comply with the Project Labor Agreement by and between the City of Long Beach and the Los Angeles/Orange Counties Building and Construction Trades Council and the Signatory Craft Councils and Unions, or a successor to such agreement.

C. For projects funded by this Ordinance through Programs outlined in section 3.100.030.C, the following provisions apply:

1. A project of 40 or more units is eligible to receive funding or financing from this Ordinance only if all construction and rehabilitation is subject to the Countywide Community Workforce Agreement executed by the Los Angeles County Chief Executive Officer on June 7, 2023.

2. For the purposes of section 3.100.050.C.1, the number of units means the maximum number of units authorized in an entitlement granted by the land use permitting authority for a development project, regardless of whether construction or rehabilitation proceeds in phases or project ownership is divided.

3. Notwithstanding section 3.100.050.C.1, if a project labor agreement is agreed between the City of Long Beach or project developer and a labor council that includes local building and construction trades unions affiliated with at least 10 different international unions, then a project with 40 or more units is eligible to receive funding or financing from this Ordinance if all construction and rehabilitation is subject to that project labor agreement.

D. For purposes of this Ordinance, "project labor agreement" has the meaning stated in subdivision (b)(1) of section 2500 of the Public Contract Code.

E. All projects receiving funding or financing from this ordinance shall be considered public work for which prevailing wages shall be paid, for purposes of Chapter 1 (commencing with Section 1720) of Part 7 of Division 2 of the Labor Code.

3.100.055 CONFLICTING MEASURES.

Consistent with California Elections Code Section 9321, should another ballot measure in the City containing provisions that conflict with this Ordinance be adopted by voters at the same election as this

Ordinance is adopted, the terms of the ballot measure that receives the higher number of affirmative votes shall control.

3.100.060 SEVERABILITY.

This Ordinance shall be interpreted to be consistent with all applicable federal, state, and local laws. If any section, subsection, sentence, clause, phrase, or portion of this Ordinance is held to be invalid or unconstitutional by a court of competent jurisdiction, such decision shall not affect the validity of the remaining portions, which shall remain in full force and effect.

The voters hereby declare that they would have adopted this Ordinance, and each section, subsection, sentence, clause, phrase, and portion thereof, irrespective of the fact that any one or more sections, subsections, sentences, clauses, phrases, or portions may be declared invalid or unconstitutional.